

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Team # 3	CCRB Case #: 201402954	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 01/23/2014 12:50 AM	Location of Incident: The corner of Marcy Place and Grand Concourse Avenue.	18 Mo. SOL 7/23/2015	Precinct: 44
Date/Time CV Reported Fri, 03/28/2014 1:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/28/2014 1:09 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Enver Lopez	04474	954078	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Amrit Singh	31667	955498	PBBX
2. SGT Bolue Hui	3714	945833	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Enver Lopez	Abuse: PO Enver Lopez frisked § 87(2)(b)	A . Substantiated
B . POM Enver Lopez	Abuse: PO Enver Lopez threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Enver Lopez	Discourtesy: PO Enver Lopez acted rudely toward § 87(2)(b)	C . Unsubstantiated

Case Summary

On March 28, 2014, § 87(2)(b) filed this complaint via phone with the Civilian Complaint Review Board (CCRB).

On January 23, 2014 at approximately 12:50 a.m., § 87(2)(b) crossed Grand Concourse Avenue, near Marcy Place, in the Bronx, outside of the pedestrian crosswalk. As a result § 87(2)(b) was stopped by PO Enver Lopez, Sgt. Bolue Hui, and PO Amrit Singh of Patrol Borough Bronx. The following allegations resulted due to this interaction:

- **Allegation A- Abuse of Authority- PO Enver Lopez frisked** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as *substantiated*.
- **Allegation B- Abuse of Authority- PO Enver Lopez threatened to arrest** § 87(2)(b)
§ 87(2)(b)
- **Allegation C- Discourtesy- PO Enver Lopez acted rudely towards** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation B** and **C** be closed as *unsubstantiated*.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is § 87(2)(b) black man with black hair and brown eyes.

CCRB Statement:

§ 87(2)(b) appeared at the CCRB on April 3, 2014 and provided the following statement (encl. E1-E5). On March 28, 2014, § 87(2)(b) provided a phone statement, § 87(2)(g)
§ 87(2)(g)

January 23, 2014, at approximately 12:50 a.m. in the vicinity of Marcy Place and Grand Concourse, in the Bronx, § 87(2)(b) was stopped by an officer driving in a marked van, determined by investigation to be PO Lopez. Prior to being stopped, § 87(2)(b) stated that he was in the process of crossing the street and did not make it all the way to the crosswalk before crossing. § 87(2)(b) had entered the lines of the crosswalk by the time he was about half way across the street. PO Lopez told § 87(2)(b) that there was a report of a crime in the area and that he needed to search him. § 87(2)(b) complied, and allowed PO Lopez to pat his shoulders, arms, chest, waist, outside of his pockets and the outside of his legs. PO Lopez did not enter any of § 87(2)(b)'s pockets. § 87(2)(b) allowed him to do so without any resistance. PO Lopez

then asked for § 87(2)(b)'s identification which § 87(2)(b) provided. The identification was a Pennsylvania drivers' license.

After the frisk, PO Lopez asked § 87(2)(b) if he ever received any tickets. § 87(2)(b) stated that he had one in New York and PO Lopez asked what the disposition of the summons was, to which § 87(2)(b) responded that the summons was dismissed. PO Lopez then stated to § 87(2)(b) "They're going to dismiss this one too." § 87(2)(b) then became upset that he was receiving a ticket and asked the officer, "What did I do? Why are you writing me a ticket?" PO Lopez explained to § 87(2)(b) that he was standing on the dividing line between the opposite lanes of traffic. § 87(2)(b) stated to the officer that he couldn't afford another ticket, and asked the officer if he could let him go. PO Lopez told § 87(2)(b) "It's only fifty dollars, stop crying." PO Lopez then went to his van where there were two additional uniformed officers, determined by investigation to be Sgt. Hui and PO Singh. Sgt. Hui and PO Singh did not speak to § 87(2)(b) throughout the interaction.

§ 87(2)(b) stated to PO Lopez that he was now getting cold and had to use the bathroom. PO Lopez then laughingly told § 87(2)(b) "stop crying." § 87(2)(b) stated that he was not crying, and he jokingly stated to PO Lopez that he was going to sue PO Lopez and the City of New York if he got sick. PO Lopez then placed his hand on his firearm, but did not draw it, and ordered § 87(2)(b) to turn around, and stated, "You are going to sue us? I'm going to arrest you now." § 87(2)(b) turned around and PO Lopez then backed up and went back to the vehicle. PO Lopez stayed there for an additional fifteen minutes, and during that time, § 87(2)(b) sat down on the street, waiting for the officers. Finally, PO Lopez threw a summons out of the driver's side window to the ground without saying anything. § 87(2)(b) picked up the ticket and ran away. The entire interaction lasted for about one hour.

Photographic Arrays for PO Amrit Singh and Sgt. Bolue Hui

On June 19, 2014, two photographic arrays were viewed by § 87(2)(b) at the CCRB (encl. E6-E10). § 87(2)(g)

§ 87(2)(b) was unable to identify any of the depicted officers in either of the photo arrays. After viewing the photographs, § 87(2)(b) stated that he was not confident that he would be able to identify any of the officers he encountered on the incident date. § 87(2)(g)

NYPD Statements:

Subject Officer: PO ENVER LOPEZ

- PO Lopez was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) Hispanic man with black hair and black eyes.
- PO Lopez was assigned to work from 7:30 p.m. on January 22, 2014 to 4:05 a.m. on January 23, 2014 as the Sargent's operator with Sgt. Hui and PO Singh in uniform in a marked Van (vehicle #8669).

Memo Book:

"00:50- Male stop on Marcy Place and Grand Concourse; "C" summons issued by PO Singh summons# § 87(2)(b) to § 87(2)(b) DOB: § 87(2)(b) Eyes: Br, Hair: Bk ID# § 87(2)(b) State: PA Type Class: C, Exp: § 87(2)(b) Deft. stated in our pres.: If I get sick I am going to sue the city" (encl. J1-J4).

PO Lopez appeared at the CCRB on August 5, 2014, his statement is outlined below (encl. K1-K2).

PO Lopez asked § 87(2)(b) for his identification, which § 87(2)(b) provided. PO Lopez gave the license to Sgt. Hui, who started running a warrant check, PO Singh began preparing the summons for § 87(2)(b) and PO Lopez began searching for the violation code for PO Singh. PO Lopez then noticed § 87(2)(b) pacing back and forth, to the back and front of the van, with his hands in his pockets. PO Lopez does not recall if he, Sgt. Hui, or PO Singh issued § 87(2)(b) any commands, specifically to stop moving. PO Lopez initially stated that this observation raised his suspicion to exit the van to frisk § 87(2)(b) however PBA representative Janet Insardi stated, "Did you also see any bulge or anything?" PO Lopez responded that he also saw a bulge in § 87(2)(b)'s pants pocket.

PO Lopez then exited the van, asked § 87(2)(b) to place his hands on the van, which § 87(2)(b) complied with, and PO Lopez then frisked § 87(2)(b). PO Lopez does not recall § 87(2)(b)'s response to being frisked, or if he made any statements. After § 87(2)(b) was frisked, § 87(2)(b) stated to the officers that he was going to sue the city. PO Lopez did not recall if he, PO Singh, or Sgt. Hui responded to that statement. PO Lopez did not recall himself, PO Singh, or Sgt. Hui threatening to arrest § 87(2)(b) or make the statement, "You're going to sue us? I'm going to arrest you now."

PO Lopez stated that along with several pedestrian fatalities, there were also a number of robberies that occurred near the train station in the vicinity of this location.

- Sgt. Hui was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) Asian man with black hair and black eyes.

- Sgt. Hui was scheduled to work from 5:50 p.m. on January 22, 2014 to 2:45 a.m. on January 23, 2014, as the Impact Response Team Supervisor, with PO Enver Lopez in a marked van (vehicle #8669).

Memo Book:

“0:50: 1 m stop c/o Marcy/ G. Concourse for § 87(2)(b) He sat on the wet icy roadway and stated it’s cold if I get cold, I am going to sue the city § 87(2)(b)” (encl. H1-H3)

CCRB Statement:

On July 31, 2014, Sgt. Hui was interviewed by the CCRB. § 87(2)(g)

At the time of the incident, at Marcy Place and Grand Concourse, Sgt. Hui, PO Singh, and PO Lopez observed § 87(2)(b) crossing the middle of the street, outside of the crosswalk, causing traffic to slow down. The incident location has a high volume of traffic, moving at high speeds, and there have been several recent accidents in which pedestrians were hit by vehicles. Sgt. Hui also stated that this area was a drug-prone location. Sgt. Hui was not aware of any recent reports regarding a firearm in the area on that night. PO Lopez, pulled up next to § 87(2)(b) and one of the three officers told § 87(2)(b) to stop, and § 87(2)(b) complied. Sgt. Hui and PO Lopez exited the van and approached § 87(2)(b) Sgt. Hui was unsure if PO Singh also exited the van. PO Lopez asked for § 87(2)(b)’s identification, which § 87(2)(b) provided. While the summons was being written by PO Singh, § 87(2)(b) then stated, “If I get a cold, I’m going to sue the city.” Sgt. Hui does not recall if he or any officer responded to this statement, and denied saying or hearing any officer say, “You are going to sue us? I’m going to arrest you now.” Sgt. Hui did not recall if he or any other officer frisked § 87(2)(b) during this incident. Sgt. Hui stated § 87(2)(b) did not make any actions that led him to believe § 87(2)(b) was armed.

Witness Officer: PO AMRIT SINGH

- PO Singh was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) Hispanic man with a bald head and brown eyes.
- PO Singh was scheduled to work from 7:30 p.m. on January 22, 2014 to 4:05 a.m. on January 23, 2014 on a sector foot post, and at 12:05 a.m. was assigned to van 86699 with Sgt. Bolue Hui and PO Lopez in uniform.

Summons # § 87(2)(b)

§ 87(2)(a) 160.50

Memo Book:

“00:50: C-Summons issued to § 87(2)(b) for § 87(2)(b) He was observed committing this act on Marcy Place and Grand Concourse Summons § 87(2)(b)” (encl. F1-F3)

CCRB Statement:

On July 1, 2014, PO Singh appeared at the CCRB and provided the following statement (encl. G1-G2). § 87(2)(g)

On January 23, 2014, at approximately 12:50 a.m., in the vicinity of Grand Concourse Avenue and Marcy Place, in the Bronx, PO Singh was sitting in the front passenger seat of van #86699, with Sgt. Hui was sitting in the back passenger seat and PO Enver Lopez was driving along Grand Concourse Avenue. PO Singh stated that the incident location was an accident prone location, and due to a recent snow storm, there was ice in the middle of the street.

PO Lopez and Sgt. Hui stopped § 87(2)(b) on Grand Concourse Avenue, however, PO Lopez did not personally observe § 87(2)(b) committing the violation prior to him being stopped, and did not know who made the observation. PO Singh, PO Lopez and Sgt. Hui exited the van and PO Lopez spoke with § 87(2)(b). PO Singh did not have any interaction with § 87(2)(b) and PO Singh did not recall if Sgt. Hui had any interaction with § 87(2)(b). PO Lopez did not recall the nature or content of PO Lopez's interaction with § 87(2)(b).

Sgt. Hui told PO Singh to issue a summons to § 87(2)(b) for jaywalking. PO Singh went inside the van to write the summons. PO Lopez frisked § 87(2)(b) but PO Singh did not recall why or at what point § 87(2)(b) was frisked. PO Singh did not recall seeing any shapes or bulges to § 87(2)(b)'s person, did not recall him making any furtive movements. PO Singh did not make any observations that led him to believe that § 87(2)(b) was armed.

At some point in the interaction, § 87(2)(b) stated that if he got sick he was going to sue the city. PO Singh recalls either PO Lopez or Sgt. Hui asking § 87(2)(b) to stand up, but did not recall if any officer threatened to arrest § 87(2)(b). PO Singh did not recall if an officer stated, "You are going to sue us? I'm going to arrest you now."

NYPD Documents

Roll Call

The 44th Precinct's tour 1 roll call for January 23, 2014 confirms that PO Singh, PO Lopez, and Sgt. Hui were assigned to work as the Impact Response Team out of the 44th Precinct, at the time of this incident (encl. L1-L8).

Summons for Incident and Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] .

Status of Civil Proceedings

- As of September 16, 2014, no notice of claim was filed against the city of New York in regards to this incident, which is four months and three weeks past the filing deadline (encl. O1).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. C2).

Subject Officer CCRB History

- PO Lopez has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. C1).

Conclusion

Identification of Subject Officer

PO Lopez admitted frisking § 87(2)(b) during this incident. § 87(2)(b) testified that the officer that threatened to arrest him was the same officer that frisked him. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority- PO Enver Lopez frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by PO Lopez, PO Singh, and Sgt. Hui for blocking vehicular traffic. It is undisputed that PO Lopez interacted with § 87(2)(b) during this stop. Sgt. Hui stated that he did not recall if § 87(2)(b) was frisked, however § 87(2)(b) PO Lopez, and PO Singh all state that PO Lopez frisked § 87(2)(b) § 87(2)(g)

According to § 87(2)(b) upon the officer first approaching him, he stated that there was a report for some crime in the area, and told § 87(2)(b) that he was going to frisk him, which § 87(2)(b) allowed PO Lopez to conduct. According to PO Lopez, § 87(2)(b) had provided his identification, and PO Singh began writing a summons for § 87(2)(b) for § 87(2)(b), when he noticed § 87(2)(b) pacing back and forth, to the back and front of their van, with his hands in his pockets.

At the prompting of PBA Union Rep. Janet Insardi, PO Lopez claimed that he saw two bulges in each of § 87(2)(b)'s front pants pockets, one of which was innocuous, and the larger of which, was the “width” of a knife. Rep. Insardi also prompted him through leading, suggestive questions to say that the bulges could have been a weapon. PO Lopez testified that these were the only factors that led him to frisk § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

A frisk is permissible when an officer has reasonable suspicion that a person is armed and dangerous. Arizona v. Johnson, 555 U.S. 323 (2009) (encl. A1-A8). An amorphous bulge does not provide reasonable suspicion that a person possesses a weapon. People v. Marine, 142 A.D.2d 368 (1st Dept. 1989) (encl. A9-A11). Observations susceptible to an innocent as well as a

guilty explanation are not sufficient to permit an officer to frisk someone. People v. Stevenson 7A.D.3d 820 (2nd Dept. 2004). (encl. A12)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *substantiated*.

Allegation B- Abuse of Authority- PO Enver Lopez threatened to arrest § 87(2)(b)

Allegation C- Discourtesy- PO Enver Lopez acted rudely towards § 87(2)(b)

§ 87(2)(b) s statement that he was going to sue the City if he got cold during this interaction is undisputed. § 87(2)(g) According to § 87(2)(b)

§ 87(2)(b) PO Lopez responded, “You are going to sue us? I’m going to arrest you now.”

However, PO Lopez, stated that he did not have any response to this statement, and did not threaten to arrest § 87(2)(b)

Additionally, PO Singh and Sgt. Hui did not hear PO Lopez respond to § 87(2)(b)

s statement, or hear PO Lopez threaten to arrest § 87(2)(b) § 87(2)(b)

also stated that his threat to sue the city was made in jest towards the officers. § 87(2)(g)

According to § 87(2)(b) PO Lopez threw his summons out of the window of the van towards

§ 87(2)(b) PO Lopez denied throwing the summons towards § 87(2)(b) and stated that he

handed the summons to § 87(2)(b) Sgt. Hui, and PO Singh, corroborated that PO Lopez

handed the summons to § 87(2)(b) and they did not see PO Lopez throw the summons at § 87(2)(b)

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§ 87(2)(g) It
is therefore recommended that **Allegations B and C** be closed as ***unsubstantiated***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date